

**BEFORE THE MAHARASHTRA REAL ESTATE REGULATORY AUTHORITY,
MUMBAI**

Complaint No. CC006000000078380

Smita Bhikaji Kaskar

..... Complainant

Versus

Nirmal Lifestyle Ltd

..... Respondent

Project Registration No. P51800003188

Coram: Hon'ble Dr. Vijay Satbir Singh, Member – 1/MahaRERA

Adv. Nitin Kaskar appeared for the complainant.

Mrs. Vaishali Mohite appeared for the respondent.

ORDER

(6th August, 2019)

1. The complainant has filed this complaint seeking directions from MahaRERA to the respondent to pay interest for the delayed possession as provided under Section -18 of the RERA Act 2016 in respect of booking of a flat No. 1508, on 15th floor of the building, in the respondent's project known as "**Turquoise**" bearing MahaRERA registration number P-51800000318. The complainant further requested to direct the respondent to file an affidavit cum undertaking regarding not creating any third party rights in connection with the complainant's flat.
2. The matter was finally heard today. During the hearings, the complainant has stated that the complainant had booked the said flat and a registered agreement for sale was also executed in the year 2015 and as per clause-18 of the agreement, the respondent was liable to hand over possession to the complainant on or before August 2017 with a grace period of six months i.e. by February, 2018. However, the respondent has not handed over possession of the said flat to the complainant. The complainant further requested MahaRERA to direct the respondent not to mortgage the complainant's flat by the respondent.

3. The respondent disputed the claim of the complainant and argued that the present complaint has been filed with dishonest and malafide intentions by suppressing the facts that the complainant has accepted monthly compensation from the respondent for the period of August, 2018 to November, 2018 amounting to Rs 2,40,000/- and despite receiving the said amount, the complainant has filed this false and baseless complaint. The respondent further argued that the complainant is not entitled to seek relief under section-18 since he has already accepted the compensation from the respondent. The respondent further submitted that they will handover the possession of the flat to the complainant as mentioned in MahaRERA website.
4. The MahaRERA examined the arguments advanced by both the parties as well as the record. It is seen that there is a delay in handing over possession of the flat to the complainant as per the registered agreement for sale executed between the parties. The complainant is seeking interest for the delayed possession as provided under Section-18 of the Act. The respondent alleged that they have paid compensation for the delayed possession for the period August, 2018 to November, 2018 and the same has been denied by the complainant by way of rejoinder dated 1st July 2019. From the records, it appears that though the respondent has filed his reply, ^{he} he has not mentioned sufficient reason for the delay happened in the project. After the commencement of provisions RERA Act, the allottees are entitled to seek interest for the delayed possession. In the present case, the complainant made payment as per the payment schedule in the agreement and the same has been not denied by the respondent. Provision of section-18 as discussed by the Hon'ble Bombay High Court in Writ petition No. 2737 of 2017 of Neelkamal Realtors Suburban Pvt. Ltd. & Others V/s. Union of India, where in Hon'ble Bombay High Court has clarified that the payment of interest is not a penalty, but, only some compensation granted to the allottees, who have put their hard earned

money in the project and therefore, it is reasonable to compensate the complainant herein for the period of delay.

5. In light of the aforesaid facts, the MahaRERA directs the respondent to pay interest for the delayed period from 1st March 2018 till the actual date of possession at the rate prescribed by MahaRERA that is MCLR + 2%. Since the project is nearing completion, the payment of interest would adversely affect the project. Therefore, the MahaRERA directs the respondent that the payment of interest would be adjusted against the outstanding dues, if any, by the complainant and the same shall be paid at the time of possession.



(Dr. Vijay Satbir Singh)
Member – 1/MahaRERA